
Appeal Decision

Site visit made on 4 August 2026

by **J J Evans BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 28 August 2026

Appeal Ref: 6007314

Kingston Barn, Access to Kingston House, Kingston Russell, Dorset DT2 9EE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mrs J Littman of Ashley Chase Estates against the decision of Dorset Council.
 - The application Ref is P/FUL/2022/03559.
 - The development proposed is the removal of dilapidated block and portal frame buildings; conversion and change of use of barns to comprise 5 dwellings; erect two dwellings; and landscaping and car parking.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A revised version of the National Planning Policy Framework (the Framework) was published on 17 August 2026, and the comments of the main parties were sought. Consideration has been given to those received in reaching the appeal decision.
3. Kingston Russell Farmhouse is a grade II* listed building. As required by Section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act) special regard has been paid to the desirability of preserving a listed building or its setting or any features of special architectural or historic interest which it possesses.
4. The historic buildings within the appeal site are regarded as Non-Designated Heritage Assets (NDHAs) by the main parties, and there is no disagreement as to the impact of the scheme upon them. For the avoidance of doubt the appeal has been considered on that basis.
5. During the Council's consideration of the original application, a Tree Preservation Order was made on trees to the western and northern boundary of the site and a sycamore to the south. This order was confirmed on 10 February 2026, and the protection of the trees has been a consideration in the determination of the appeal.
6. The appeal site is within the Dorset National Landscape (NL). As required by Section 245 of the Levelling-up and Regeneration Act 2023, special regard has been paid to seeking to further the statutory purposes of the NL.
7. To address the reason for refusal at the appeal the appellant has submitted amended drawings (dwg Nos AM015-07d, AM015-08d, and 319.L.01), and an Arboricultural Impact Assessment (2026). The appeal process should not be used to evolve a scheme, and it is important that what is considered at the appeal is

what was considered by the Council and interested persons. In this instance the changes comprise additional information and the re-positioning of the granary. They have not resulted in a substantial difference to the original application and would not cause procedural unfairness to anyone involved in the appeal, so have been considered.

Main Issue

8. The main issue in this case is the effect of the scheme upon the character and appearance of the area, having particular regard to the impact upon protected trees and the contribution they make to the national landscape.

Reasons

9. The appeal site is a vacant farmstead positioned upon a steeply sloping hillside within the countryside. It comprises a mix of historic and modern buildings with their associated yards that are positioned in a clustered group to one side of Kingston Russell Farmhouse. Surrounding both the farmstead and the farmhouse are paddocks and fields, many of which are delineated by hedges and trees.
10. The scheme proposes the conversion of the historic buildings into five dwellings and the erection of a further two dwellings. There is no dispute between the main parties as regards the principle of providing residential development in a countryside location and the appeal has been considered on that basis.
11. Although some of the historic buildings are in a dilapidated state, individually and collectively they illustrate the historic purpose and use of the site as an 18th and 19th century farmstead. Their forms and relationships to each other, to the road, and to the farmhouse clearly demonstrate their former agricultural functions. In addition, the use of a variety of local stones within these buildings reflects the close association of the farmstead with the land, all of which is part of their significance as NDHAs. These vernacular materials contrast those used in the farmhouse, whereby the use of brick and slate enhances the high status of this listed building. The farmhouse dominates the area due to its size and its elegantly mannered appearance which define it as a building of importance. It is set apart from the historic farmstead, albeit very close to it, with the legible relationship between the two being clearly apparent. These features along with the historic purpose and function of the farmhouse are all part of the special architectural and historic interest of this listed building.
12. As identified in the West Dorset Landscape Character Assessment (2009) the topography often determines the positioning of farmsteads and settlements as they are mostly within valley bottoms or part way up the hillsides, as is the case with the appeal site. The landscape in this part of the NL is dominated by the openness of the uplands contrasting with the more intimate lower reaches of the valleys where the fields, the lanes and the scatter of occasional dwellings are mostly enclosed by mature trees and hedges.
13. Despite the derelict and dilapidated nature of the farmstead, it makes a positive contribution to the character and appearance of the NL, in part because of the functional vernacular of the historic built form, but also because both the farmstead and the farmhouse are surrounded by trees. There are mixed native species trees to the north and south of the site, as well as a linear group of sycamores along the western boundary, and further swathes to the east and south of the farmhouse.

These trees form a distinctive verdant cluster that contrasts the open expansiveness of the fields to the north. The grouping of the trees reflects the historic importance of the farmhouse and farmstead within the area as they provide a functional roll as a wind break and as screening, as well as forming a continuous ecological habitat. The size of these trees, the mix of native species, along with their enclosure of the farmhouse and farmstead, makes an important contribution to the special qualities of the NL.

14. The development would harmfully impact upon the appearance, health and vitality of the protected trees, eroding the important contribution they make to the area. The row of sycamores forms a long composite crown with an imposing impact due to their tall height and large size, and they form a strong linear setting to the farm buildings. They show little evidence of management, with those at the southern end of the row having crowns that extend over the cow shed and over the concrete access track. As acknowledged within the appellant's Arboricultural Impact Assessment (2026) crown lifting would be necessary to allow for the site's re-development, including the rebuilding of the flint boundary wall.
15. Notwithstanding this assessment, details of the amount of crown lifting have not been provided, and a root protection area has been drawn in a rigid line irrespective of the spread of the crowns and that of the roots. Having regard to the age of the trees and their broad, tall crowns and the extent of their encroachment into the site, a significant amount of the canopies would have to be removed to enable the development to occur, including large limb works. Furthermore, the sycamores are growing close to the boundary wall, with some self-seeders within it. Works to the wall would be difficult to achieve without significant management of the trees. It cannot be assumed that conditions would provide certainty that the trees would survive and maintain the important contribution they make to the area.
16. To the south of the site there is a pond with a mix of mostly native trees around it, including two sycamore that are to the immediate south of an existing access into the farmstead. The protected sycamore has a broad upright crown with low sweeping limbs, and as it is close to the lane it is a prominent tree and one that contributes to verdant enclosure of the heritage assets and the leafy nature of this part of the NL. The relocated granary and a new access track would be installed under its crown and within its root area, thereby requiring significant crown lifting and reduction works. It is suggested for the appeal that the granary could be positioned outside the canopy, although whether this could be achieved is uncertain given that the granary sits on staddle stones of varying heights that reflect the slope of its current position, whereas its proposed one would follow the contour. Even if this issue could be resolved, having regard to the extensive works that would need to occur to both the crown and within the root area of this tree, it cannot be assumed that conditioning a methodology would protect its health and vitality and thereby the contribution it makes to the area.
17. The Framework requires substantial weight to be given to conserving and enhancing the natural beauty of NLs. In this case the trees make an important contribution to the character and appearance of the NL, but their presence has not informed the development of the site. The impact of the development upon the protected trees would cause direct and unacceptable harm to them. Even if they survived the totality of the works, the number of trees affected would significantly erode the verdant contribution they make to the NL, as a biodiversity corridor, and the function they perform in screening and enclosing the farmstead and

farmhouse. Given the residential appearance of the development with its clustered concentration of homes, residential paraphernalia, subdivision of the farmstead with multiple gardens, and expansive parking provision, the reduction of the impact of the trees would result in the development having an intrusively conspicuous residential impact that would be at harmful odds with the remoteness of this part of the NL. Furthermore, as they are native species, the biodiversity value of the trees would be eroded, particularly as form part of a larger group that would provide continuous green feeding corridors for species such as bats and birds.

18. There is no dispute between the parties as regards the impact of the scheme upon the setting of the farmhouse and to the significance of the NDHAs. The impact of the scheme upon the protected trees would erode the verdant setting they form to the listed farmhouse. The Framework requires that harm to a designated heritage asset should be weighed against any public benefits resulting from the proposal. The retention and restoration of the historic farm buildings would be a considerable public benefit to the setting of the farmhouse, as would the repair of historic boundary walls. These public benefits and the provision of an additional seven dwellings at a time when the Council does not have a five year housing land supply, would be important public benefits of the scheme that would outweigh the harms arising to the farmhouse's setting as a result of the works to the trees.
19. Nevertheless, the development would result in substantial harm to protected trees and the important contribution they make to the NL. The scheme would neither conserve nor enhance the NL, and the ecological value of the site would be reduced. Given the number of trees affected and the ambiguity of works, conditions could not be relied upon to ensure the health and vitality of the trees. There would be conflict with Policies ENV2 and ENV10 of the West Dorset, Weymouth and Portland Local Plan (2015) (LP), as these require, amongst other things, development to maintain and enhance local identity and distinctiveness, including the retention and protection of trees that contribute to the area's distinctive character, and that nature conservation should be safeguarded.

Other Matters

20. Poole Harbour Special Protection Area (SPA) and Ramsar are nationally and internationally important for wetland habitats and birds. The water quality in the harbour is in an unfavourable condition due to elevated concentrations of nitrogen and phosphorous, which is causing eutrophication with consequential impacts upon the quality of the habitats and their ability to support the bird populations. Nutrient enrichment occurs from a variety of sources, one of which is from wastewater from residential development, and a net increase in the number of dwellings and occupiers in the area would therefore have an adverse effect upon these important habitat sites and species.
21. The appeal site would be within the groundwater source protection area for these habitat sites, and to prevent an adverse effect upon the integrity of the SPA and Ramsar proposed development must provide nutrient mitigation. In this case nutrient neutrality could be achieved through the provision of a package treatment plant (PTP) and restricting water usage. Whilst a condition could restrict water usage, the drawings do not show the provision of a PTP nor has any legal agreement been provided to secure a maintenance schedule for it for its lifetime, which should include and ensure that any replacement would achieve nutrient

neutrality. Without such measures the scheme would adversely affect the integrity of these important habitat sites. In these circumstances and because of the findings on the main issue, it has not been necessary to undertake an Appropriate Assessment as required by the Conservation of Habitats and Species Regulations (2017). The harms to the SPA and Ramsar weighs heavily against the scheme.

22. Reference to the Dorset Council Local Plan has been made, which was out for consultation last year. As explained by the Council this plan is at an early stage of preparation and some time away from adoption. Given this, it has limited weight in consideration of the appeal.
23. The appellant's concerns regarding the Council's handling of the application and appeal relate to procedural matters and fall to be assessed by other means separate from the consideration of the appeal.

Planning Balance

24. At 2.53 years, the Council acknowledges that it cannot demonstrate a five-year supply of deliverable housing sites. This is a substantial shortfall and the provision of seven additional homes would be an important benefit of the scheme, as would according with the Framework's encouragement for an efficient use of land. The setting of the listed farmhouse would benefit through the retention and ongoing use of historic farm buildings, and these would be important benefits. There would be a modest time-limited economic benefit arising from construction. The absence of highways or living conditions concerns for future occupiers would have a neutral weight.
25. Whilst the appellant considers the affordable housing contribution would be a benefit of the scheme, it has not been secured. The Unilateral Undertaking provided for the appeal contains a variety of omissions and ambiguities, including different signatures, dates, and no means of binding successors in title. Consequently, the weight to be afforded to the provision of an affordable housing contribution would be negated. Furthermore, as mitigation of the proposal's impact upon habitat sites has not been secured, this also weighs heavily against the scheme.
26. Planning law requires that applications for planning permission be determined in accordance with the development plan, unless material considerations indicate otherwise. The decision making policies in the Framework are a material consideration and should be read alongside policies in the development plan, and where policies or parts of them are materially inconsistent with the Framework, the Framework requires they should be given very limited weight. LP Policy ENV10 requires the retention of trees that contribute to an area's character, thereby reflecting objectives of the Framework that existing trees should be retained wherever possible. LP Policy ENV2 seeks to mitigate harm to nature conservation interests and development that would have an adverse effect upon the integrity of internationally important habitat sites should only be permitted where adequate mitigation can be provided, thereby according with the Framework and its requirement that planning permission should be refused if harm to biodiversity has not been adequately mitigated. Consequently, the conflict of the scheme with these development plan policies should be given significant weight.
27. Whilst a key aim of the Framework is to significantly boost the supply of housing, when read as a whole the Framework does not suggest this should happen at the

expense of other considerations. In this case, irrespective of the Council's housing land supply shortfall and the benefits that accrue from the scheme, these would be outweighed by the substantial harms that arise from the scheme with regard to the NL and to protected habitat sites.

Conclusion

28. For the above reasons the scheme would result in substantial harms that could not be overcome by conditions, and there would be conflict with the development plan when considered as a whole. There are no other considerations, including the requirements of the Framework, that outweigh this finding. Thus, for the reasons given above and having considered all other matters raised, the appeal is dismissed.

J J Evans

INSPECTOR